

**IN THE UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF TEXAS
MCALLEN DIVISION**

CASSANDRA WHITAKER, AS	§	
PUTATIVE REPRESENTATIVE OF	§	
THE ESTATE OF NASHYRA	§	
WHITAKER,	§	
<i>Plaintiff</i>	§	
	§	
vs.	§	CIVIL ACTION NO. 7:23-cv- 00339
	§	
BIANCA FARMER, ET AL.,	§	
<i>Defendants.</i>	§	

PLAINTIFF’S AMENDED COMPLAINT AND JURY DEMAND

TO THE HONORABLE JUDGE OF SAID COURT:

COMES NOW, **CASSANDRA WHITAKER**, Individually, and as Putative representative of the ESTATE OF Nashyra Whitaker, (hereinafter referred to as “Plaintiff”), duly appointed, qualified, and acting representative of the Estate of Nashyra Whitaker, now deceased, complaining of and about **ALL SQUARE INC AKA GALLERY SOCIAL LOUNGE, IZK LLC, ADRIANA TREVINO, and ISSAC V. GARCIA** hereinafter sometimes referred to as “Defendants”, and for cause of action shows unto the Court the following:

I.

PARTIES

1. Plaintiff, **CASSANDRA WHITAKER**, is an individual who resides in Carville, Iberville Parish, Louisiana. Cassandra Whitaker is the mother of decedent NASHYRA WHITAKER.
2. Defendant, **ALL SQUARE, INC AKA THE GALLERY AKA GALLERY SOCIAL LOUNGE**, is a domestic, for-profit corporation headquartered at 428 N 10th, McAllen, Texas,

78501, and doing business in Texas and can be served through Secretary of State: Aiden Kazemi at 1019 Brazos Street, Suite 105, Austin, Texas 78701 and or through their Registered Agent: Adriana Trevino at 139 Benson Drive, Brownsville, Texas 78521 or wherever they may be found.

3. Defendant, **IZK, LLC**, is a domestic, for-profit corporation headquartered at 117 S 17TH ST, McAllen, Texas 78501, and doing business in Texas and can be served through Secretary of State: Aiden Kazemi at 1019 Brazos Street, Suite 105, Austin, Texas 78701 or wherever they may be found.

4. Defendant, **ADRIANA TREVINO**, is an individual residing in Cameron County, Texas. Defendant **ADRIANA TREVINO** may be served with process at 139 Benson Brownsville Texas, 78521, or wherever he may be found.

5. Defendant, **ISSAC V. GARCIA**, is an individual residing in Hildalgo County, Texas. Defendant **ISSAC V. GARCIA** may be served with process at 317 Norfolk Drive, Corpus Christi, Texas, or wherever he may be found.

II.

MISNOMER/ALTER-EGO

6. In the event any parties are misnamed or are not included herein, Plaintiff contends that such was a “misidentification,” “misnomer” and/or such parties are/were “alter egos” of parties named herein. Alternatively, Plaintiff contends that any “corporate veils” should be pierced to hold such parties properly included in the interest of justice.

III.

JURISDICTION AND VENUE

7. The subject matter in controversy is within the jurisdictional limits of this Court. Venue is proper in McAllen, Texas on the grounds that at all times material to this lawsuit, and to the filing

of this lawsuit, all or a substantial part of the events or omissions giving rise to this claim occurred in Southern District of Texas McAllen Division. Additionally, the Deceased was domiciled in Louisiana and Defendants are domiciled in Texas. Therefore, the venue properly lies in Southern District of Texas McAllen Division.

IV.

FACTS

8. Defendants **ADRIANA TREVINO, ISSAC V. GARCIA** were owners, general partners, or members of ownership in some capacity in **THE GALLERY AKA GALLERY SOCIAL LOUNGE**. Additionally, **ADRIANA TREVINO**, and **ISSAC V. GARCIA** shared ownership with other businesses that were parent or sister companies which consist of **ALL SQUARE INC AKA GALLERY SOCIAL LOUNGE, IZK LLC**, that was open for business in 2021 located at 117 South 17TH Street, McAllen, Texas 78501. Also, Defendant **ALL SQUARE INC AKA GALLERY SOCIAL LOUNGE** had ownership in “**THE GALLERY**”. These Defendants contributed to the function and operation of the social lounge back in September of 2021.

9. On or about September 5, 2021, the decedent, Nashyre Whitaker and Defendant Bianca Farmer visited the Gallery Social Lounge located in McAllen, Hidalgo County, Texas. Adrianna Trevino was the holder of liquor license No. **MB1042988** while the liquor license was in the name of “**THE GALLERY**”. Plaintiff and Defendant Bianca Farmer were patrons at the Social Gallery Lounge establishment, Defendant Bianca Farmer was served alcohol in excess, as provided to her by Defendant Social Gallery Club’s staff. On or about 2:00 am on September 5, 2021, Bianca Farmer and Nashyre decided to return to their hotel. The vehicle driven by Bianca Farmer was a car rented and Bianca Farmer attempted to drive back to their hotel; however, she was extremely impaired and intoxicated. While driving Defendant Bianca Farmer, Nashyre Whitaker, as her

passenger, lost control of the vehicle and collided with a light pole. Due to the initial impact, the vehicle was sent spinning and stopped only after colliding with a second light pole. As a result of the negligence of Defendants Gallery Social Lounge and Bianca Farmer, Nashyre Whitaker was killed from the impact of the collision.

V.

DRAM SHOP LIABILITY

10. Defendants are liable for the damage caused by Defendant Bianca Farmer as the seller and provider of Bianca Farmer's alcoholic beverages. Defendant, **ALL SQUARE INC GALLERY SOCIAL LOUNGE, IZK LLC, ADRIANA TREVINO, and ISSAC V. GARCIA** had a duty, established by the Dram Shop Act, that imposes liability on providers who serve alcohol to obviously intoxicated patrons who could become a danger to themselves or those around them. Defendants **ALL SQUARE INC GALLERY SOCIAL LOUNGE, IZK LLC, ADRIANA TREVINO, and ISSAC V. GARCIA** not only provided alcoholic beverages to Defendant Bianca Farmer and Nashyra Whitaker, but continued to do so even after Defendant Bianca Farmer was clearly intoxicated enough to endanger herself and those around her. But for Defendant, **ALL SQUARE INC GALLERY SOCIAL LOUNGE, IZK LLC, ADRIANA TREVINO, and ISSAC V. GARCIA** although Defendant Bianca Farmer was obviously intoxicated, Defendant Bianca Farmer would not have been so intoxicated while driving that she collided with a light pole, injuring killing Nashyre Whitaker. Defendants **ALL SQUARE INC GALLERY SOCIAL LOUNGE, IZK LLC, ADRIANA TREVINO, and ISSAC V. GARCIA** is therefore liable for damages to Plaintiff.

VI.

WRONGFUL DEATH

11. Plaintiff incorporates by reference Paragraph 9 and 10, as fully set forth herein. By reason of Defendants **ALL SQUARE INC AKA GALLERY SOCIAL LOUNGE, IZK LLC, ADRIANA TREVINO, JR., ISSAC V. GARCIA** wrongful conduct of causing the death of Nashaya Whitaker, the defendants are liable for the damages.

12. Defendants **ALL SQUARE INC AKA JACKIES BAR AND GRILL AKA GALLERY SOCIAL LOUNGE, IZK LLC, ADRIANA TREVINO, ARMANDO LOPEZ JR., ISSAC V. GARCIA and CESAR CRUZ** conduct caused Nashyra Whitaker's death and the producing cause of her injuries, which resulted in the following damages: Loss of family relationship, love, support, services, emotional pain, and suffering.

Plaintiff seeks compensation as set forth more specifically in the section of the complaint entitled "Damages."

VII.

SURVIVAL ACTION

13. Plaintiff incorporates paragraphs 9, 10, 11, and 12 by reference if fully set forth herein. Plaintiff Cassandra Whitaker is the Putative Representative of the estate of Nashyra Whitaker. Nashyra Whitaker died as a result of the Defendants' wrongful conduct. Cassandra Whitaker is entitled to this action against the Defendants if she had lived. The decedent's right of action for the wrongful conduct against the Defendants survive in favor of her heirs, legal representatives and the estate of the deceased. Defendants are liable to the Plaintiff for the loss of Nashyra Whitaker's life.

14. Defendants are liable to Plaintiff for the loss of Nashyra Whitaker's life, pain and suffering. Plaintiff seeks compensation as set forth more specifically in the section of this

Compliant entitled “Damages.”

VIII.

JOINT AND SEVERAL LIABILITY

15. Plaintiff incorporates paragraphs 9, 10, 11, 12, 13, and 14 by reference if fully set forth herein. Plaintiff would show that the Defendants were jointly and severally liability for the gross negligence, which was the proximate cause of the Nashyra Whitaker’s death.

IX.

GROSS NEGLIGENCE

16. Further, Plaintiff incorporates paragraphs 9, 10, 11, 12, 13, 14 and 15 by reference if fully set forth herein. Defendants **ALL SQUARE AKA GALLERY SOCIAL LOUNGE, IZK LLC, ADRIANA TREVINO, ISSAC V. GARCIA** wrongful conduct, in selling alcoholic beverages to Defendant Farmer, even after she was obviously intoxicated, constitutes gross negligence. The continued providing of alcohol to Defendant Bianca Farmer once she was obviously intoxicated involved an extreme risk to the lives of those around Defendant Bianca Farmer. As an established provider of alcoholic beverages, Defendant Gallery Social Lounge would have had actual knowledge of the risk involved with its behavior, but nevertheless continued to provide beverages to Defendant Bianca Farmer. This conscious indifference to the risks to the rights and safety of the public therefore constitutes gross negligence on behalf of Defendant Gallery Social Lounge.

X.

DAMAGES

17. As a direct and proximate result of Defendants’ willful, reckless, and negligent actions, Nashyra Whitaker suffered bodily injuries, mental anguish, pain, and suffering, which ultimately resulted in her death. Plaintiff seeks damages to recover for the wrongful and untimely death of

Nashyre Whitaker, her daughter, and for pain and suffering up to this point include:

- a. Actual Damages
- b. Loss of affection, consortium. Comfort, financial assistance, protection affections and care;
- c. Pain and suffering and mental anguish suffered by Nashyre Whitaker prior to death;
- d. Mental anguish and emotional distress suffered by Plaintiff;
- e. Loss of quality of life;
- f. Funeral and burial expenses
- g. Loss of service
- h. loss of future earnings and contributions to Plaintiff;
- j. Prejudgment interest; and
- k. Post judgement interest.

Plaintiff seeks unliquidated damages in an amount that is within the jurisdictional limits of the court. Plaintiff is also seeking punitive damages.

XI.

PUNITIVE DAMAGES/EXEMPLARY DAMAGES

18. Plaintiff incorporates by reference paragraphs 1 through 17 as if fully set forth herein. Additionally, and in the alternative, the conduct of the Defendants was done with intent and malice. As such, Plaintiff requests punitive and exemplary damages to deter this type of conduct in the future. In the alternative, such heedless and reckless disregard of Nashyra Whitker's life and welfare is more than momentary thoughtlessness, inadvertence or misjudgment. Such unconscionable conduct goes beyond ordinary negligence, and as such Plaintiff requests punitive and exemplary damages are awarded against the Defendants in a sum which is within the

jurisdictional limits of this court.

XII.

JURY DEMAND

19. Plaintiff requests a trial by jury. Plaintiff paid the jury fee in state Court prior to the case being transferred to Federal Court

PRAYER

WHEREFORE, PREMISES CONSIDERED, Plaintiff respectfully prays that the Defendants be cited to appear and answer herein and that upon a final hearing of the cause, judgment be entered for the Plaintiff against Defendants for the maximum amount of damages allowable along with such other and further relief to which Plaintiff may be entitled at law or in equity.

Respectfully submitted,

THE PAYNE FIRM, P.C.

/s/ Marquise Bryant

MARQUISE BRYANT

SBN: 24105550

FBN: FBN: 3339254

2100 Travis Street, Suite 800

Houston, TX 77002

Telephone: (713) 223-5100

Facsimile: (713) 222-0794

Email: mbryant@paynelawfirm.com

ATTORNEY FOR PLAINTIFF